Section C: Organization and Staffing

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Effective date: Jan. 1, 2027. Review cycle: once a year.

Regulatory basis: K.A.R. 28-51-100(aa); K.A.R. 28-51-103(b)(1)(C), (D); K.A.R. 28-51-117(e); KDHE Application Guide, Personnel section (staff roster). Guidance: OSHA, Guidelines for Employers to Reduce Motor Vehicle Crashes; OSHA, Guidelines for Nursing Homes and Safe Patient Handling (OSHA 3708); The Hanover Insurance Group and McGriff on personal vehicles used for business.

C-1. Organizational Chart

Golden Rule Home Care & Concierge Services LLC has these roles:[1]

- Governing body: the sole member and owner of the LLC;[2]
- Administrator;[3]
- Alternate administrator, who carries out all administrator duties in the administrator's absence, as set in B-1;[4]
- Manager or supervisor;[5]
- Supportive care worker.[6]

Appendix C-A names the person in each role.[7] Until other staff are hired, the owner holds every role except alternate administrator.[8] Reporting lines: owner-operator, then alternate administrator, then caregivers. A supervisor role may be added later.

C-2. Staff Roster

The staff roster is kept in Appendix C-B.[9] It lists each employee's folder number, name, license, position, status, and date of hire.[9] The administrator updates the roster whenever someone is hired, changes position, or leaves.[9]

C-3. Manager or Supervisor Job Description

The manager is available to supportive care workers for questions at all times.[10] The manager prepares the plan of care and reviews it every 60 days, prepares written assignments for workers from the plan of care and reviews them every three months or sooner when the client's status and needs change, makes on-site supervision visits every three months, and receives reports from workers about client changes and medication concerns.[11]

Requirements: at least one year of experience providing home health services, HCBS (home and community based services), or supportive care services, as K.A.R. 28-51-100(aa) requires.[12] Preferred: two or more years of experience, and prior experience supervising, scheduling, or training staff.[7]

Other duties: on request, the manager also creates employee schedules, returns or makes calls to clients and employees when the administrator is not available, contributes ideas for marketing, advertising, and outreach, and helps plan and run employee in-services and events.[7] This job description may not list every task the manager is asked to do.[7]

Driving: a valid driver's license and a reliable vehicle.[13] The manager signs a driver agreement and has a driving record check at hire and once a year after that.[14] Current proof of auto insurance is kept on file, verified as set in D-11.[13]

Physical demands: able to lift, push, or pull 35 pounds, the same as a supportive care worker, since the manager trains workers and may need to help a client during a supervision visit or an emergency; navigating stairs, multi-level homes, and uneven surfaces; sitting at a desk; standing and walking during home visits and staff supervision or training.[15] Anything heavier than 35 pounds is moved with a lift device or a second person.[15]

Employee signature: _____ **Date:** _____

C-4. Supportive Care Worker Job Description

The supportive care worker provides the supportive care services in Section G under written assignments from the manager.[16] The worker documents every visit, reports client changes to the manager, and stays within the scope of practice in Section G.[17]

Qualifications: at least 18 years old; valid driver's license; current auto insurance, verified as set in D-11; reliable transportation; prior experience; clean record; completed orientation, training, and competency check in Section I.[18][19]

Work conditions: work takes place in clients' homes, which may include stairs, pets, smoke, and varied conditions.[7]

Physical demands: able to lift, push, or pull 35 pounds.[15] Anything heavier than 35 pounds is moved with a lift device or a second person.[15]

Employee signature: _____ **Date:** _____

Adoption

The governing body of Golden Rule Home Care & Concierge Services LLC adopts the policies in this section.[20] Taylor Anderson, as sole member and owner of the LLC, approves them and reviews them once a year or sooner when a rule changes.[21]

Signature: _____ **Date:** _____

Taylor Anderson, Owner, Golden Rule Home Care & Concierge Services LLC

Effective date: Jan. 1, 2027. Next review date: Jan. 1, 2028.

Appendix C-A. Role Appointments

This appendix names the person in each role in C-1.[7] The appendix is updated whenever one of them changes.[22]

Role	Name	Date named	Approved by
Governing body (sole member and owner)	Taylor Anderson		
Administrator	Taylor Anderson		
Alternate administrator	Hayley Hynek		
Manager or supervisor	Taylor Anderson		
Supportive care worker	Taylor Anderson		

Hayley Hynek is the alternate administrator.[23] Joslyn Roadstrom joins as a caregiver.

Appendix C-B. Staff Roster

Folder	Name	License	Position	Status	Date of hire
1	Taylor Anderson	None	Owner, Administrator, Manager, Caregiver	Active	04/27/2023
2	Hayley Hynek		Alternate Administrator		
3	Joslyn Roadstrom		Caregiver		

[TAYLOR TO NAME LATER: license, status, and date of hire for rows 2 and 3.]

Client Review

Client redlines: mark any changes on this section, then sign and date below. A digital signature (for example DocuSign) is accepted in place of ink.

Client signature: _____

Printed name: _____

Date: _____

Client signature (digital)

Date signed

Notes

1. K.A.R. 28-51-103(a)(2); K.A.R. 28-51-117(e)(1). Required: The governing body employs a qualified administrator and alternate administrator, and a supportive care agency employs a manager available to workers at all times. Source: Kansas Register, May 5, 2022.
2. K.A.R. 28-51-100(r); K.A.R. 28-51-103(a). Required: Each agency has a governing body, defined as the person or persons who make up its legal administrative structure. Source: Kansas Register, May 5, 2022.
3. K.A.R. 28-51-103(a)(2), (b)(4). Required: A qualified administrator. For an agency providing only supportive care, the administrator is at least 21, has one year of experience in a home health agency or related health care service, and holds a bachelor's degree, an associate's degree or a KDHE-approved administrator course certificate. Source: Kansas Register, May 5, 2022.
4. K.A.R. 28-51-103(c); K.A.R. 28-51-100(d). Required: The alternate administrator meets all administrator requirements, is available whenever the administrator is not and handles all administrator duties in that absence. Source: Kansas Register, May 5, 2022.
5. K.A.R. 28-51-100(aa); K.A.R. 28-51-117(e)(1). Required: A manager with at least one year of experience providing home health services, HCBS or supportive care services, available to workers at all times. Source: Kansas Register, May 5, 2022.
6. K.A.R. 28-51-117(b). Required: The agency has written policies describing the supportive care worker's scope of practice and required training. Source: Kansas Register, May 5, 2022.
7. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(b)(1)(D), written personnel policies and job descriptions, Kansas Register.
8. K.A.R. 28-51-103(a)(2), (c). Allowed: No rule found bars one person from serving as administrator, manager and worker. The rule does require an alternate administrator who is available whenever the administrator is not. Source: Kansas Register, May 5, 2022.
9. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(b)(1)(E), personnel records, Kansas Register.
10. K.A.R. 28-51-117(e)(1); K.A.R. 28-51-100(aa)(1). Required: The agency employs a manager who is available to supportive care workers for questions at all times. Source: Kansas Register, May 5, 2022.
11. K.A.R. 28-51-104(c)(3)(C), (F); K.A.R. 28-51-117(e)(2), (f); K.A.R. 28-51-117(g)(1)(B). Required: The manager assesses the client for the plan of care and reviews it at least every 60 days, prepares written assignments from the plan of care and reviews them every three months or sooner as the client's status and needs change, and provides on-site supervision at least every three months. Workers report medication problems to the manager immediately. Source: Kansas Register, May 5, 2022.

12. K.A.R. 28-51-100(aa)(2). Required: At least one year of experience providing home health services, HCBS or supportive care services. Source: Kansas Register, May 5, 2022.
13. K.S.A. 40-3104(a); K.S.A. 40-3107(e). Required: Every vehicle owner must carry auto liability insurance, with Kansas minimum limits of $25,000 per person, $50,000 per accident and $25,000 for property damage. Collecting proof is agency choice. Source: K.S.A. 40-3104; K.S.A. 40-3107.
14. 15 U.S.C. 1681b(b)(2). Required: If a screening company supplies the driving record, the employer first gives a written disclosure in a document by itself and gets written permission. How often to check is agency choice. Source: 15 U.S.C. 1681b.
15. OSH Act section 5(a)(1); OSHA nursing home ergonomics guidelines. Required: Each employer must keep the workplace free of recognized hazards likely to cause death or serious physical harm. OSHA's voluntary guidelines recommend that manual lifting be minimized in all cases and eliminated when feasible. The 35-pound limit is agency choice. Source: OSHA, General Duty Clause; OSHA, Guidelines for Nursing Homes.
16. K.A.R. 28-51-117(b), (f)(1). Required: Workers stay within the written scope of practice and work from written assignments a manager prepares from the plan of care. Source: Kansas Register, May 5, 2022.
17. K.A.R. 28-51-117(f)(2)(B), (C); K.A.R. 28-51-117(g)(1)(B). Required: Written assignments say when the worker reports to the supervisor and require documentation of the services at each visit. Medication problems are reported to the manager immediately. Source: Kansas Register, May 5, 2022.
18. K.S.A. 65-5117(b); K.S.A. 44-1009(a)(1). Allowed: The agency may set job qualifications. The statute bars employing anyone with a listed offense or an adverse registry finding, and the Kansas Act Against Discrimination bars qualifications that discriminate by protected class without a valid business necessity. Source: K.S.A. 65-5117; K.S.A. 44-1009.
19. K.A.R. 28-51-117(c). Required: Each worker must show competency before providing services without the manager present, and is reevaluated every year. Source: Kansas Register, May 5, 2022.
20. K.A.R. 28-51-103(a)(3). Required: The governing body adopts, revises and approves the agency's policies and procedures as needed. Source: Kansas Register, May 5, 2022.
21. K.A.R. 28-51-103(a)(3). Allowed: The governing body revises policies as needed. A yearly review is agency choice. Source: Kansas Register, May 5, 2022.
22. K.A.R. 28-51-101(e). Required: The agency notifies KDHE in writing within five days after a change of administrator or alternate administrator, with the new person's name, address and qualifications. Updating the appendix is agency choice. Source: Kansas Register, May 5, 2022.
23. K.A.R. 28-51-103(c), (b)(4). Required: Whoever serves as alternate administrator must meet all administrator requirements, including age 21 or older, one year of related experience and a degree or KDHE-approved course certificate. Source: Kansas Register, May 5, 2022.